

M/S Rana Steels v. M.D. P.V.V.N.L. And Another

High Court of Judicature at Allahabad · Division Bench · 15 November 2018 · WRIT - C No. 52113 of 2008 · **Writ dismissed in terms of Dev Prayag Paper Mill.**

HEADNOTE

A writ challenging a demand for additional security for electricity supply, and the vires of clause (1) of para 4.20 of the Electricity Supply Code, 2005 (the phrase 'as and when the distribution licence provides a choice to consumer to opt') as ultra vires section 47(5) of the Electricity Act, 2003, is dismissed in terms of the Division Bench judgment dated 21 March 2017 in Writ-C No. 30898 of 2016 (M/S Dev Prayag Paper Mill (Pvt.) v. State of U.P.).

FACTUAL SUMMARY

M/S Rana Steels, a consumer of Paschimanchal Vidyut Vitran Nigam Limited, petitioned the High Court against a demand for additional security for electricity supply, with a warning that failure to pay within the stipulated period would invite action in accordance with law. The petitioner also challenged clause (1) of para 4.20 of the Electricity Supply Code, 2005, insofar as it provided a choice to the consumer to opt, as ultra vires section 47(5) of the Electricity Act, 2003. Counsel stated that a number of identical matters had already been dismissed.

HOLDING-UNITS

INTERPLAY · UP-2005::4.20

additional security and consumer option under 4.20

HOLDING

The writ challenging a demand for additional security for supply of electricity, and clause (1) of para 4.20 of the Electricity Supply Code, 2005 insofar as it provides 'as and when the distribution licence provides a choice to consumer to opt' as ultra vires section 47(5) of the Electricity Act, 2003, is dismissed in terms of the judgment dated 21.3.2017 in Writ-C No. 30898 of 2016 (M/S Dev Prayag Paper Mill (Pvt.) v. State of U.P.).

PRINCIPLE TAGS

additional-security A writ challenging a demand for additional security for electricity supply, and the vires of clause (1) of para 4.20 of the Electricity Supply Code, 2005 (the phrase 'as and when the distribution licence provides a choice to consumer to opt') as ultra vires section 47(5) of the Electricity Act, 2003

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
M/S Dev Prayag Paper Mill (Pvt.) vs. State of U.P. and 3 others Writ-C No. 30898 of 2016			Court	Referred